

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

MALTHE THOMSEN,

Plaintiff,

– against –

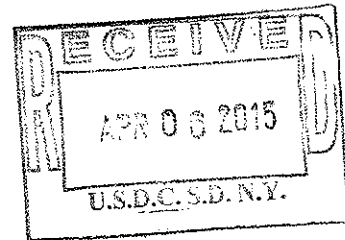
CITY OF NEW YORK; WILLIAM BRATTON,
Commissioner of the New York City Police
Department, in his individual and official capacities;
Detective NELA GOMEZ, in her individual and
official capacities; Assistant District Attorney
RACHEL FERRARI, and Assistant District Attorney
NICOLE BLUMBERG, in their individual and official
capacities; JOHN DOES ## 1-11, in their individual
and official capacities; Maria Angeliki Kefalas (a/k/a
Mariangela Kefalas/Gigi Kefalas), in her individual
capacity,

Defendants.

15 CV 2668

JUDGE COTE
COMPLAINT AND
JURY DEMAND

ECF CASE



Plaintiff MALTHE THOMSEN (hereinafter "Plaintiff"), by his attorneys Fisher
& Byrialsen, PLLC, for his Complaint alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action against the City of New York (the "City")
based on and arising out of wrongful acts and omissions of employees and agents of the New
York City Police Department ("NYPD") and the New York County District Attorney's Office
("DANY"), and against named individual employees and agents of these offices, in which the
Plaintiff seeks relief for the violation of his rights secured by the Civil Rights Acts of 1866 and
1871, 42 U.S.C. §§ 1983, 1985 and of his rights secured by the Fourth, Fifth, Sixth and
Fourteenth Amendments to the United States Constitution, and of his rights secured under the
laws and Constitution of the State of New York. This action is also brought against Maria

Angeliki Kefalas, who is not a state actor, based upon her individual wrongful acts and omissions.

2. The City Defendants in this action, including, the City, NYPD Commissioner William Bratton (“Bratton”) and NYPD Detective Nela Gomez, Assistant District Attorney Rachel Ferrari, Assistant District Attorney Nicole Blumberg, and John Does #1-11 have implemented and are continuing to perpetuate, encourage and sanction a policy, practice and/or custom of covertly utilizing unconstitutional interrogation tactics, without audio or video recording the interrogation from its inception; suppressing and concealing exculpatory evidence, inducing false confessions by coercion, and knowingly using false confessions to support unjust arrests and prosecutions.

3. Plaintiff seeks damages, both compensatory and punitive, an award of costs and attorneys’ fees, and such further relief as this court deems just and proper, as a result of being wrongfully incarcerated at a New York City Department of Corrections facility for thirteen (13) days and maliciously prosecuted for approximately five (5) months. Although he consistently maintained his innocence throughout the pendency of this matter, he was publicly branded as a child molester, depicted on the cover page of the New York Daily News as a “Monster at U.N. Pre-K,”¹ and wrongfully entered into the Statewide Central Register of Child Abuse and Maltreatment maintained by the New York State Office of Children and Family Services.

4. The events that led to the Plaintiff’s wrongful arrest on June 27, 2014 and resulting malicious prosecution were initiated by false allegations made by Defendant Maria Angeliki Kefalas, Plaintiff’s former co-worker at The International Preschools (hereinafter,

¹ *Monster at U.N. Pre-K*, Daily News, (July 4, 2014), available at <http://nydailynews.tumblr.com/post/90752550905/monster-at-u-n-pre-k-http-nydn-us-1qcc8s4-she>. (Last visited April 6, 2015).

“IPS”), who was fired from her position at IPS on June 5, 2014, following its investigation of her allegations. Shortly thereafter, on or about June 10, 2014, Ms. Kefalas subsequently filed a false complaint with the NYPD alleging that Plaintiff sexually abused children who attended IPS. Despite the seriousness of these charges and the obvious possibility that her claims were generated by a desire for retaliation, the unsubstantiated sex crimes alleged by Ms. Kefalas were not appropriately investigated or verified by the NYPD or DANY. Instead, Plaintiff was taken into custody on June 27, 2014 at 6:00 a.m. and transported to the Special Victims Squad in New York County. He was then isolated and interrogated by NYPD officers, who failed to make an audio or video recording of any portion of the five-hour interrogation.

5. During the interrogation, the Defendant Officers used coercive and deceptive interrogation techniques, including, *inter alia*, trickery, claims of existence of evidence that in fact did not exist, isolation, and the making of false promises regarding release and leniency, to elicit statements from Plaintiff that they knew were false, but which were used to implicate him in the alleged crime. At the direction of Defendant Detective Gomez and her partner, Plaintiff was told to write down a statement consistent with the false information previously elicited. After many hours of coercive interrogation, Plaintiff was then transported to the District Attorney’s Office. For the first time, video recording equipment was used. Plaintiff made a recorded oral “confession” that the Defendant Officers had spent hours crafting for Plaintiff.

6. The pattern and practice of the NYPD of interrogating suspects without a video recording of the entire interrogation process is deeply entrenched. Prior lawsuits have been filed against the City and other municipalities for Constitutional violations that have resulted in false confessions and wrongful convictions, outcomes that could have been avoided if

law enforcement personnel recorded interrogations from their inception to completion. For example, the City recently settled the consolidated matter of In re McCray, et. al. 03-CV-9685(DAB) (RLE) for approximately \$41 million, wherein five individuals alleged, among other causes of action, that the NYPD elicited false confessions from the plaintiffs as a result of coercive and deceptive interrogation techniques used during lengthy unrecorded interrogations. In each case, such unlawful interrogations tactics preceded scripted “confessions” that were video recorded in the presence of district attorneys. In one instance, the scripted confession was actually written by the one of the interrogators.

7. In recognition of the problems inherent in failing to video record interrogations from beginning to end, the NYPD released a statement in early 2010 claiming that it would explore how it might change the way in which officers conduct interrogations.² A year later, the NYPD claimed to have launched a pilot program to videotape interrogations in felony assault cases the 48th precinct and the 67th precinct.³ On September 19, 2012, Police Commissioner Ray Kelly announced at a speech to the Carnegie Council for Ethics in International Affairs that all NYPD precincts would adopt the videotaping of interrogations, and the policy would expand on the pilot program to include not only felony assaults, but also murders and sex crimes.⁴ Despite the NYPD’s recognition of the necessity of recording interrogations, two years after the policy was announced, Plaintiff’s five-hour interrogation at the NYPD Special Victims Squad regarding alleged sex crimes was not video recorded.

² Soria, Chester, *False Confessions: NYC Still Struggles in Aftermath of Central Park Five* (November 7, 2013) available at <http://jjie.org/false-confessions-nyc-still-struggles-in-aftermath-of-central-park-five/>. (Last visited April 6, 2015).

³ *Id.*

⁴ Balancing Security and Civil Liberties in the Post-9/11 Era (September 19, 2012) available at <http://www.carnegiecouncil.org/studio/multimedia/20120919b/index.html>. (Last visited April 6, 2015).

8. The NYPD's policy, practice and custom of not video recording interrogations resulted in the false arrest and malicious prosecution of the Plaintiff for crimes he did not commit. He was improperly subjected to the harsh consequences of being charged with a felony; remanded to Rikers Island for thirteen (13) days; required to obtain a \$400,000 bond to be released during the course of the prosecution; forced to wear a GPS electronic ankle monitor and remain within the confines of New York County after his release. Furthermore, Plaintiff was zealously prosecuted despite the lack of and/or dissipation of probable cause. Ms. Kefalas' fabricated allegations, the apparent absence of any effort to verify the validity of her claims, the NYPD's coercive and deceptive interrogation that occurred without video recording, and the subsequent investigative actions of the defendant prosecutors all contributed to Plaintiff's injuries and entitle him to damages for the City Defendants' unlawful actions and Ms. Kefalas' misconduct.

9. As a direct and proximate result of the City's policies, practices and/or customs, Plaintiff, like many other City residents, has been subjected to constitutional deprivations through coercive methods of interrogation used by the NYPD and flawed investigative and prosecutorial procedures followed by DANY.

10. Plaintiff also seeks injunctive and declaratory relief against the City that the policies, practices and/or customs of coercing confessions described herein violate the Fourth, Fifth, Sixth and Fourteenth Amendments and an injunction enjoining defendants from continuing the policies, practices and/or customs of not video recording interrogations of suspects of felony crimes. In addition, Plaintiff seeks compensatory and punitive damages, an award of attorneys' fees and costs, and such other relief as this Court deems equitable and just.

11. Plaintiff also seeks compensatory damages against Defendant Kefalas.

PARTIES

12. Plaintiff is a citizen of Denmark. At the time of the incident he was a resident of New York, New York.

13. Defendant City of New York was at all times relevant herein a municipal entity created and authorized under the laws of the State of New York.

14. Defendant City of New York was, at all times relevant herein, authorized by law to maintain and did maintain a police department known as the NYPD which acted as its agent in the area of law enforcement, including, without limitation, conducting investigations of and evaluating and causing charges to be brought about alleged crimes.

15. The NYPD was, at all times relevant herein, a municipal agency of the City and was charged with the responsibility of enhancing the quality of life in New York City by working in accordance with constitutional rights to enforce the law.

16. Defendant New York City Police Commissioner William Bratton is the Police Commissioner for NYC, and is responsible for, and the chief architect of, the policies, practices and customs of the NYPD, as well as responsible for the hiring, screening, training, retention, supervision, discipline, counseling and control of the police officers and detectives under his command. He is sued individually and in his official capacity.

17. Defendants Detective Nela Gomez and John Does #1-11 were, at all times relevant herein, officers, employees, and agents of the NYPD. They are sued individually and in their official capacities.

18. Defendant City of New York was also, at all relevant times herein, authorized to act through DANY in regard to investigation, evaluation and prosecution of alleged criminal conduct within the County and City of New York.

19. DANY was at all times relevant herein an entity created and authorized under the laws of the State of New York to investigate and prosecute criminal conduct within New York County.

20. Although not a named party, New York County District Attorney Cyrus Vance Jr. was at all times relevant herein the District Attorney of the County of New York, responsible for, and the chief architect of, the policies, practices and customs of DANY, as well as responsible for the hiring, screening, training, retention, supervision, discipline, counseling and control of the assistant district attorneys who worked in his office.

21. Defendant Assistant District Attorneys Rachel Ferrari and Nicole Blumberg were at all times relevant herein, employees and agents of DANY. They are sued in their official and individual capacities.

22. At all times relevant herein, the individual defendants and other persons, not yet identified, were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of either NYPD or DANY and otherwise performing and engaging in conduct incidental to the performance of their functions in the course of their duties.

23. At all times relevant to this action, Defendant Maria Angeliki Kefalas was a citizen of Greece, with a United States residence in New York, New York.

JURISDICTION AND VENUE

24. The jurisdiction of this Court is predicated upon 28 U.S.C. §§ 1331, 1343(a)(3) and (4), as this action seeks redress for the violation of Plaintiff's constitutional and civil rights, and 1367(a), and the doctrine of supplemental jurisdiction over any and all

state constitutional and state law claims that are so related to the claims within the original jurisdiction of this Court.

25. Plaintiff's claims for declaratory and injunctive relief are authorized by 28 U.S.C. §§ 2201 and 2202 and Rule 57 of the Federal Rules of Civil Procedure.

26. The acts complained of occurred in the Southern District of New York and venue is lodged in this Court pursuant to 28 U.S.C. § 1391(b).

JURY DEMAND

27. Plaintiff demands trial by jury in this action.

NOTICE OF CLAIM

28. Plaintiff filed a Notice of Claim with the City of New York on or about January 14, 2015, within 90 days of the events complained of herein. More than 30 days have elapsed since the filing of the Notice of Claim, and adjustment or payment thereof has been neglected or refused.

29. This action has been commenced within one year and ninety days after the criminal charges against Plaintiff were dismissed in his favor.

STATEMENT OF FACTS

A. Arrest and Prosecution

30. Mr. Thomsen is a 23-year-old Danish man who resided in New York, NY at the time of the incident.

31. At the time of the incident, Mr. Thomsen was in New York working as a semester intern at the renowned Manhattan preschool, The International Preschools (hereinafter IPS).

32. Mr. Thomsen was assigned to work in the “Blue Room” at IPS alongside three full time teachers, Sarah Barrie, Gillian Weiss and Maria Angeliki Kefalas.

33. Around May 2014, near the end of the school year, Ms. Kefalas was advised that she was demoted to the position of a floater (a permanent rotating teacher without a set classroom position) at IPS for the following academic year.

34. Subsequently, on May 30, 2014 Ms. Kefalas submitted in writing by email a false allegation to IPS administration, alleging that Mr. Thomsen had sexually abused children at IPS. The complaint was forwarded to the IPS Chief Administrative Officer, Paul Kane.

35. Ms. Kefalas’ allegations were knowingly and intentionally false and malicious.

36. On June 2, 2014, IPS’ Chief Administrative Officer, Paul Kane, met with Ms. Kefalas regarding the serious allegations she reported and advised her that the school would conduct an investigation.

37. IPS conducted a thorough investigation regarding the allegations Ms. Kefalas reported against Plaintiff.

38. The IPS investigation began with undisclosed classroom observation of Plaintiff on June 3, 2014 by Mona Green and Marcia Finkelstein. Additionally, interviews were conducted on June 5, 2014 with the classroom observers, the head teacher of the Blue Room, Gillian Weiss, the assistant head teacher of the Blue Room, Sarah Barrie, the Plaintiff, the IPS computer and iPad teacher, Eira Toral-Sukhra, and Ms. Kefalas.

39. Mona Green, Marcia Finkelstein, Gillian Weiss, Sarah Barrie, and Eira Toral-Sukhra all adamantly refuted the false allegations made by Ms. Kefalas during each of their individual and separate interviews. Each of Plaintiff’s co-workers provided extremely

positive reviews of Plaintiff's teaching abilities, professionalism and his conduct with the students. Ms. Weiss and Ms. Barrie explained that the allegations were impossible as the Plaintiff was always in their presence and they had never witnessed any of the alleged conduct.

40. During Ms. Kefalas' interview on June 5, 2014 she claimed that she had "evidence" of the alleged sexual abuse in the form of video recordings, however, when Paul Kane asked her to share the "evidence" she refused to do so.

41. Ms. Kefalas was advised that if she continued to refuse to provide the alleged "evidence" she would be fired for insubordination by withholding evidence critical to the IPS investigation.

42. Ms. Kefalas continued to refuse to show or provide the alleged "evidence" to IPS and acted in a very erratic manner during her interview in regards to the allegations.

43. On June 5, 2014 Ms. Kefalas was terminated for insubordination and her contract for the Fall and Summer was rescinded.

44. IPS closed their internal investigation and determined Plaintiff had not committed the misconduct alleged by Ms. Kefalas.

45. Five days after she was terminated, on or about June 10, 2014, Ms. Kefalas falsely reported the same allegations, that Plaintiff had sexually abused children at IPS, to the NYPD.

46. On June 27, 2014 at approximately 6:00 a.m., Detective Nela Gomez and other police officers woke Plaintiff at his apartment and advised that he should come with them to answer a few questions and that he should bring his work bag as they would drop him off in time to get to work at 8:30 a.m.

47. The detectives transported Plaintiff to the NYPD Manhattan Sex Crimes Unit.

48. Plaintiff was placed in a locked room at the precinct and Defendant Gomez read him his *Miranda* rights.

49. Defendant Gomez then proceeded to interrogate Plaintiff in a manner consistent with the policies, practices and customs of defendant City and the NYPD, utilizing methods designed to exploit Plaintiff's youth, isolation from family and friends and his lack of familiarity with the American criminal justice system.

50. Detective Gomez conducted her interrogation without any audio or video recordings.

51. During the interrogation, Defendant Gomez utilized coercive tactics, including, but not limited to telling Plaintiff that she would wait with him all day until he admitted to the allegations. She also advised that if he told her what she needed to hear she would not yell at him.

52. Defendant Gomez also lied about the evidence she claimed to possess. She falsely told Plaintiff that she had a video of Plaintiff taking children's hands and placing them on his genitals.

53. In response, Plaintiff advised Defendant Gomez that he was aware of the IPS investigation regarding these allegations but that he did not commit the alleged acts and that the school's investigation also found that he did not commit the alleged acts.

54. Defendant Gomez retorted that Plaintiff should think about what she said, and she left him isolated in the locked room at the precinct.

55. Defendant Gomez later returned to the room where Plaintiff was detained in isolation and told Plaintiff, in sum and substance, that people who do what he does are sick people, that he is young enough to get treatment for his illness, and that this terrible thing inside him is just a small part of him about which he may not even be consciously aware. In response to this, Plaintiff asked her if he could get this treatment she recommended in his native country, Denmark, and Defendant Gomez assured Plaintiff that he could receive treatment in Denmark.

56. Defendant Gomez stated, in sum and substance, to Plaintiff that she has a great deal of experience with sex offenders and there is a large scale of different types of sex offenders. Defendant Gomez explained in sum and substance that at one end of the scale there are very, very horrendous sex offenders who rape and sodomize children and at the other end are people like the Plaintiff who do much less serious things and may not even themselves be aware they are doing it.

57. Defendant Gomez told Plaintiff to explain why he would have put a child's hands on his genitals in the video. Plaintiff responded he did not know why.

58. Defendant Gomez responded to Plaintiff that there is only one reason why someone would do that and Plaintiff replied, "yeah I guess there is only one reason."

59. Plaintiff then wrote a statement memorializing the information Defendant Gomez had told him during the hours of interrogation.

60. None of the events that took place at the precinct in the Sex Crimes Unit were recorded on video or by any other means.

61. At approximately 11:30 a.m. Plaintiff was transported to the District Attorney's Child Abuse Unit.

62. At approximately 12:00 p.m. Assistant District Attorney Rachel Ferrari conducted a video recorded interview with Plaintiff in the presence of Detective Nela Gomez.

63. The NYPD and DANY defendants obtained allegedly inculpatory statements from Plaintiff. The statements they obtained were a result of the prolonged and improper questioning by Detective Gomez, during which she employed deceptive, false and coercive tactics.

64. These statements were obtained as a result of a variety of methods employed by the City defendants and other related persons, which exploited the Plaintiff's young age and his lack of experience with the American criminal justice system.

65. These methods included coercion, isolation, intimidation, manipulation, suggestiveness, deceit, false promises, sleep deprivation, actively shaping the statements' contents before they were formally given, telling the Plaintiff what facts to put in his written and video statements, and misleading the Plaintiff about the true intent behind the defendants' questioning.

66. At approximately 2:00 p.m. Plaintiff was transported back to the NYPD Sex Crimes Unit.

67. At no time during the prolonged and coercive custody of the Plaintiff did any other police officer, district attorney or other related person intervene to stop or mitigate Detective Gomez's use of coercive interrogation tactics, despite their obligations to do so.

68. At no time whatsoever was the Plaintiff informed of his Consular Rights under the Geneva Convention, to which the United States is a signator.

69. On June 29, 2014, Plaintiff was arraigned on fifteen counts of Sexual Abuse in the First Degree in violation of P.L. § 130.65(3).

70. Plaintiff was remanded to custody without bail, despite having never been arrested before, and transported to Rikers Island.

71. The following day, The New York Post, The New York Daily News, The New York Times and other widely read publications, television and other media outlets published stories regarding the charges brought against Plaintiff and published photographs of Plaintiff, wherein they referred to him as a “monster” and in other derogatory terms.

72. While Plaintiff was detained at Rikers Island he was chastised as a child molester and he was threatened by other inmates with physical violence.

73. On the morning of July 3, 2014, Defendant Ferarri informed Plaintiffs defense counsel that she would be presenting the case to the grand jury that morning.

74. Subsequently, at approximately 2:30 p.m. on July 2, 2014, Defendant Ferarri informed defense counsel that she would not be going into the grand jury to seek an indictment but would instead answer ready for a preliminary hearing.

75. On July 3, 2014, a preliminary hearing was held in New York County Criminal Court before Hon Gilbert Hong.

76. The testimony of ADA Rachel Ferrari and the statements contained in Plaintiff’s videotaped “confession” were the only evidence admitted by the Defendant prosecutors at the preliminary hearing.

77. The false statements contained in Plaintiff’s videotaped “confession” were critical to the judge’s finding of reasonable cause at the preliminary hearing.

78. The factual statements recited above regarding the illegal interrogations of the Plaintiff, the false reports and statements of the various detectives, and the actions and omissions by the assistant district attorney defendants leading up to and at the preliminary

hearing, clearly shows that those defendants intentionally or recklessly disregarded the truth and their constitutional obligations and constitutional due process requirements, thereby perpetuating and reinforcing those false reports, statements and the coerced “confession” throughout the continued criminal prosecution.

79. On July 8, 2014 a bail hearing was held for the fourth time in the pendency of the Plaintiff’s case and bail was set at \$400,000 bond, \$200,000 cash, with electronic monitoring with GPS, reporting requirements on a weekly basis, no travel outside Manhattan and the requirement that Plaintiff stay 200 feet away from any elementary school or middle school, as well as any children’s playground.

80. Plaintiff’s family obtained sufficient funds to satisfy the \$400,000 bond and Mr. Thomsen was released from Rikers Island on July 9, 2014.

81. After Plaintiff’s release, he learned that due to his pending criminal prosecution, his former roommates had kicked him out of his apartment and he was required to find new housing in Manhattan.

82. Plaintiff was required to attend multiple court appearances after he was released on bail. At each court appearance the media photographed and published stories about Plaintiff and the charges pending against him.

83. On November 13, 2014 the District Attorney’s office moved to dismiss the charges against Plaintiff.

84. Following the dismissal of the charges Plaintiff was finally able to return to his home country of Denmark. While in the United States, Plaintiff established close contacts and close relationships with many co-workers and friends. Plaintiff intends to maintain those relationships and visit the United States often.

85. The defendants' illegal interrogation, arrest, deprivation of liberty, imprisonment and extreme malicious prosecution of Plaintiff, without probable cause and/or despite the dissipation of probable cause, with the attendant suppression of exonerating exculpatory evidence; the coercion, manufacture and intentional misrepresentation of knowingly false inculpatory evidence; and the deception of the New York courts concerning this evidence, constituted an unconstitutional seizure of the Plaintiff, and was effected without due process of law, in violation of the Fourth and Fourteenth Amendments to the U.S. Constitution. This proximately and directly caused the Plaintiff permanent injury, including imprisonment, loss of freedom, companionship and income, mental and physical pain, suffering, anguish, fear and humiliation, and defamation of character and reputation caused by his public branding as a child molester and "monster."

86. As the specific facts above show, the defendant police officers, detectives and district attorneys knew, or should have known, and on information and belief, concealed from the Plaintiff and his defense counsel in the criminal proceedings, and from the public that, at the time they had elicited statements from the Plaintiff which they alleged implicated him in criminal activity there was no credible evidence that he actually committed any crime.

87. These facts were known, or should have been known, to the defendants at the time they were investigating this case.

88. The defendants deliberately ignored and failed to disclose exculpatory facts, favoring instead their collective predetermined attributions of guilt that Plaintiff committed the crimes charged against him.

89. The defendants had an obligation to disclose exculpatory information to the Plaintiff and his attorneys during the criminal prosecution in a timely fashion pursuant to their *Brady* obligations and the obligations under the Rules of Professional Responsibility.

90. Failure to do so violated obligations to act as neutral police and prosecutors, and violated the Plaintiff's constitutional rights to due process of law. Contrary to those obligations, and contributing to the City defendants' liability to the Plaintiff, defendant NYC thought its agencies DANY and NYPD had a police practice of failing to disclose exculpatory evidence and failing to investigate information supporting discovery of exculpatory evidence once they had settled on their intended outcome for their case.

91. Defendants, in concealing and not timely disclosing exculpatory evidence deprived the Plaintiff of due process and the opportunity to challenge the manufactured "confession" put forward by the District Attorney's Office and the police officers and detectives.

92. In addition to the manufactured "confession" the defendants had significant exculpatory evidence, including, but not limited to the fact that Ms. Kefalas did not produce video tapes that she falsely reported contained the charged criminal conduct, that interviews with the children in Plaintiff's classroom revealed that the charged conduct did not occur, and that interviews with Plaintiff's co-teachers and others revealed that the charged conduct did not occur.

93. This evidence should have led the City defendants to have become concerned that they had wrongfully charged and were wrongfully prosecuting the Plaintiff, which should have caused them to immediately reevaluate and reconsider the charges and continuing prosecution.

94. Instead, the malicious prosecution of this case continued for many months after exculpatory evidence was revealed.

95. An honest appraisal of the evidence would have resulted in a declination to prosecute this matter at the outset or a dismissal of the charges at a much earlier date.

96. Rather than questioning the integrity of their prosecution or admitting its lack of integrity, the City defendants, including those working in the NYPD and DANY, suppressed the truth about the coercion used during Plaintiff's interrogation and even when Defendant Ferrari announced the dismissal of the charges she refused to acknowledge that the "confession" was a result of coercion.

97. The defendants' illegal interrogation, arrest, deprivation of liberty, imprisonment and malicious prosecution of Plaintiff without probable cause and/or despite the dissipation of probable cause, with the attendant suppression of exonerating exculpatory evidence; the coercion, manufacture and intentional misrepresentation of knowingly false inculpatory evidence; and the deception of the public, judges and the New York courts concerning this evidence, constituted an unconstitutional seizure of the Plaintiff, was effectuated without due process of law, in violation of the Fourth and Fourteenth Amendments to the U.S. Constitution, and proximately and directly caused the Plaintiff permanent injury, including imprisonment at Rikers Island, the attendant loss of freedom, companionship and income, mental and physical pain, suffering, anguish, fear and humiliation, and defamation of character and reputation caused by his public branding as a sex offender and his entry into the New York State Child Abuse and Maltreatment Register.

98. Defendants' wrongful conduct, as described above, also caused serious and permanent damage to the intimate family relationships of Plaintiff, as he was prohibited

from returning home to Denmark, his native country, during the pendency of this prosecution, which interfered with his most basic right to familial privacy and the right of the family to remain together without the coercive interference of the awesome power of the State.

99. This serious and permanent damage to the intimate family relationships and family integrity of Plaintiff included, without limitation, emotional and physical injury, pain and suffering, mental anguish, humiliation, embarrassment, loss of consortium and substantial expenses.

B. Liability of the Individual City Defendants

100. All the acts described above were committed by the individual City defendants under color of state law and under their respective authorities as police officers and prosecutors, supervisors, and employees, acting within the scope of their employment.

101. The individual City defendants, in committing the aforesaid conspiracies, acts, and omissions to act, were deliberately indifferent to, and in reckless disregard of, Plaintiff's rights and thereby caused actual injuries to Plaintiff.

102. The individual City defendants, in committing the aforesaid acts, were acting as joint tortfeasors.

103. As a direct and proximate result of the conspiracies, acts and omissions to act described above, the individual City defendants subjected the Plaintiff to loss of liberty and other deprivations of constitutional rights, including, but not limited to, deprivation of the right to substantive due process and familial association, pain and suffering, severe and permanent emotional injuries, mental anguish as well as other psychological injuries, extreme emotional distress, shame, humiliation, indignity, damage to reputation, loss of earnings, and obliged him to pay for legal fees and other expenses.

C. Municipal Liability

I. For the Actions of the NYPD Defendants Pursuant to NYPD Policies and Practices

104. All of the acts by the NYPD defendants described above were carried out pursuant to policies and practices of NYC which were in existence at the time of the conduct alleged herein and which continue to exist. This conduct was engaged in with the full knowledge, consent and cooperation, and under the supervisory authority of the defendant NYC and its agency, the NYPD.

105. Defendant NYC and the NYPD, by their policy-making agents, servants and employees, authorized, sanctioned and/or ratified the police defendants' wrongful acts; and/or failed to prevent or stop these acts; and/or allowed or encouraged these acts to continue.

106. The actions of the NYPD defendants resulted from and were taken pursuant to de facto policies and/or well-settled and widespread customs and practices of NYC, which are implemented by police officers, to prosecute and continue to prosecute persons through fabricated and manipulated allegations without adequate basis in fact and/or despite substantial exculpatory evidence known to them and withheld from accused persons.

107. The existence of such unlawful de facto policies and/or well-settled and widespread customs and practices has been known to supervisory and policy-making officers and officials of the NYPD and NYC, including without limitation Commissioner Bratton, and his predecessors in interest, for a substantial time.

108. In fact, former NYPD Commissioner Ray Kelly publicly acknowledged the problematic de facto policy, practice and/or custom of failing to video record interrogations, and in 2012 he claimed a new policy was implemented requiring recording interrogations of all suspects of sex crimes and murders.

109. Despite the NYPD's public acknowledgment regarding the need to video record interrogations of suspects of sex crimes and murders, the NYPD has failed to implement the policy and instead has allowed the deeply entrenched and de facto policy, practice and custom of not video recording interrogations to persist.

110. Despite knowledge of such unlawful de facto policies and practices, the supervisory and policy-making officers and officials of the NYPD and NYC and their predecessors in interest did not take steps to actually terminate these policies and practices, did not discipline individuals who engaged in such practices, or otherwise properly train police officers with regard to the constitutional and statutory limits on the exercise of their authority, and instead sanctioned and ratified these policies, customs and practices through their deliberate indifference to or reckless disregard of the effect of said policies, customs and practices upon the constitutional rights of persons in NYC.

111. NYC's policies and practices in existence at the time of the conduct complained of herein caused the Plaintiff's injuries and have continued to exist, including, *inter alia*, the following:

- a. The failure to properly supervise, train, instruct, and discipline police officers with regard to proper conduct and investigation at and in relation to a criminal complaint;
- b. The failure to properly supervise, train, instruct, and discipline police officers with regard to the preparation of truthful accusatory instruments;
- c. The failure to properly supervise, train, instruct, and discipline police

officers with regard to adequate evidence of crimes and to discipline those who unjustifiably charge and prosecute or continue to prosecute persons accused of crimes in the absence of probable cause;

d. The failure to properly supervise, train, instruct, and discipline police officers with regard to exercise of their authority, including, without limitation, in regard to disclosure of exculpatory evidence;

e. The failure to properly supervise, train, instruct, and discipline police officers with regard to proper methods of conducting interviews of witnesses and/or accused persons, particularly vulnerable persons who are unfamiliar with the criminal justice system of the United States, and to discipline police officers who use improper methods to coerce and/or elicit false statements and/or confessions.

f. The tacit acceptance of and encouragement of a code of silence wherein police officers regularly cover up police misconduct by refusing to report other officers' misconduct or by telling false and/or incomplete stories, *inter alia*, in sworn testimony, official reports, in statements to the Civilian Complaint Review Board and the Internal Affairs Bureau, and in public statements designed to cover for and/or falsely exonerate accused police officers;

g. Encouraging and/or failing to discipline officers for "testilying" and/or fabricating false evidence to bring about the police officers' preconceived perceptions or determinations of guilt, including, but not limited to, such perceptions and/or determinations influenced by prejudice or bias.

112. The aforementioned NYC policies, practices and customs of failing to supervise, train, instruct and discipline police officers and encouraging their misconduct are evidenced by the police misconduct detailed herein.

113. The NYC policies, practices and customs in existence of failing to supervise, train, instruct and discipline police officers in regards to video recording interrogations of suspects of felony crimes and conducting such interrogations in a manner that does not elicit false confessions.

114. The NYPD has recognized and acknowledged the need for videotaping interrogations and former Commissioner Ray Kelly publicly claimed that the NYPD implemented a policy to videotape interrogations of suspects of sex crimes and murder cases.

115. Despite former Commissioner Kelly's public statements regarding the policy to video record interrogations of suspects in sex crimes and murder cases, upon information and belief, police officers receive no training regarding how to conduct interrogations in a manner that will prevent false statements or confessions, particularly with respect to interrogations of vulnerable subjects who are unfamiliar with the United States criminal justice system. Instead, the police officers are trained to use isolation, false promises and intimidation during interrogations.

116. Upon information and belief, defendant City and its agency, the NYPD, failed to effectively screen, hire, train, supervise and discipline their police officers, including the defendant police officers herein, for bias, lack of truthfulness, and for their failure to protect individuals from the unconstitutional conduct of other police officers, thereby permitting and allowing the defendant police officers to be in a position to elicit false confessions from the Plaintiff and to fabricate evidence sufficient to secure criminal prosecutions in violation of federal and state constitutional rights, and/or to permit these actions to take place with those officers' knowledge or consent.

117. As a result of the foregoing conscious policies, practices, customs and/or usages, defendant NYC, and its agency, the NYPD, permitted and allowed the employment and retention of individuals as police officers whose individual circumstances place the public or segments thereof at substantial risk of being the victims of preconceived determinations of guilt.

118. The Plaintiff's injuries were a direct and proximate result of the defendants' wrongful policies, practices, customs and/or usages complained of herein and of the knowing and repeated failure of the defendant NYC and NYPD to properly supervise, train and discipline their police officers.

119. Defendant NYC knew or should have known that the acts alleged herein would deprive Plaintiff of his rights, in violation of the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution and Article 1, §§ 1, 6, 11 and 12 of the Constitution of the State of New York, including, without limitation, the Plaintiff's freedom from deprivation of liberty without due process of law.

120. Defendant NYC is directly liable and responsible for the acts of the defendant officers because it repeatedly and knowingly failed to properly supervise, train, instruct, and discipline them and because it repeatedly and knowingly failed to enforce the publicly announced rules and regulations of the NYPD, and to require compliance with the constitutions and laws of the State of New York and the United States.

121. The defendant NYC is also directly liable and responsible for the acts of the individual NYPD defendants for state law claims under the doctrine of respondeat superior.

2. For the Actions of the Prosecutors Pursuant to the Policies and Practices

122. All of the acts by the defendant prosecutors described above were carried out pursuant to the policies and practices of NYC which were in existence at the time of the

conduct alleged herein and were engaged in with the full knowledge, consent, and under the supervisory authority of DANY.

123. Defendant NYC and the District Attorney's Office, by their policy-making agents, servants and employees, authorized, sanctioned and/or ratified the defendant prosecutors' wrongful acts; and/or failed to prevent or stop these acts; and/or allowed or encouraged these acts to continue.

124. The actions of the defendant prosecutors resulted from and were taken pursuant to de facto policies and/or well-settled and widespread customs and practices of NYC, which are implemented by prosecutors, to prosecute and continue to prosecute persons through fabricated and manipulated allegations without adequate basis in fact and/or despite substantial exculpatory evidence known to them and withheld from accused persons.

125. The existence of such unlawful *de facto* policies and/or well-settled and widespread customs and practices has been known to supervisory and policy-making officers and officials of the District Attorney's Office and NYC, including, without limitation District Attorney Cyrus Vance Jr. ("D.A. Vance"), defendant ADA Blumberg and defendant ADA Ferrari, and their predecessors in interest, for a substantial period of time.

126. Despite knowledge of such unlawful de facto policies and practices, these supervisory and policy-making officials of the District Attorney's Office and NYC and their predecessors in interest did not take steps to terminate these policies and practices, did not discipline individuals who engage in such practices, or otherwise properly train prosecutors with regard to the constitutional and statutory limits on the exercise of their authority, and instead sanctioned and ratified these policies, customs and practices through their deliberate indifference

to or reckless disregard of the effect of said policies, customs and practices upon the constitutional rights of persons in NYC.

127. NYC's policies and practices complained of herein, which caused the Plaintiff's injuries herein include, *inter alia*, the following:

a. The failure to properly supervise, train, instruct, and discipline prosecutors who participate with and advise police officers in using coercive interrogation techniques during the course of an investigation;

b. The failure to properly supervise, train, instruct, and discipline prosecutors who conspire with police officers during the course of an investigation to prevent persons being interviewed to have access to counsel and, with respect to interrogation of vulnerable persons, to use coercive tactics including, trickery, isolation and the making of false promises regarding release, to elicit admissions from Plaintiff that they knew were false, but which were used to implicate him in the alleged crime despite the lack of any evidence to corroborate these false admissions.

c. The failure to properly supervise, train, instruct, and discipline prosecutors with regard to proper investigatory techniques and adequate evidence of crimes and to discipline those who unjustifiably charge and prosecute or continue to prosecute persons accused of crimes in the absence of probable cause.

128. The aforementioned NYC policies, practices and customs of failing to supervise, train, instruct and discipline prosecutors and encouraging their misconduct are evidenced by the prosecutorial misconduct detailed herein. Several different members of the District Attorney's Office directly subjected the Plaintiff to coercive interrogation and deprived

him of exculpatory evidence. These prosecutors represent the corrupt investigative policies and practices of the District Attorney's Office.

3. For the Actions of the District Attorney

129. All of the acts by the defendant prosecutors described in the preceding paragraphs were carried out with the actual or constructive knowledge, consent, acquiescence, ratification and/or cooperation of the highest ranking members of the New York County District Attorney Offices as well as D.A. Vance.

130. Upon information and belief, D.A. Vance and/or his most senior management held meetings attended by the office's senior staff, to review facts relating to investigations, to authorize prosecutions and to discuss the status and progress of cases brought by that office, including high profile cases like the prosecution against Plaintiff.

131. At meetings concerning Plaintiff's case, D.A. Vance and/or his senior management were briefed as to the status of the case and determinations were made to authorize the continuing prosecution of the Plaintiff.

132. At these meetings, D.A. Vance and/or his senior management were made well aware that defendants Blumberg and Ferrari were unconstitutionally and unlawfully prosecuting and continuing to prosecute the Plaintiff herein based on fabricated and manipulated allegations without adequate basis in fact and/or despite substantial exculpatory evidence known to assistant district attorneys and police officers and withheld from Plaintiff.

133. Nonetheless, D.A. Vance, either directly or by designating his authority and responsibilities to others in a senior management or supervisory capacity, failed to adequately supervise defendants Blumberg and Ferrari and allowed the prosecution of the Plaintiff to continue despite being informed of the inadequacy of the evidence, particularly the non-

existence of videos that were claimed to contain the alleged criminal conduct, the exculpatory evidence received from IPS' investigation, DANY's interviews with witnesses and the knowledge of coercive tactics that were employed during the NYPD defendants' interrogation of Plaintiff.

134. Despite the knowledge of impropriety of the prosecution, D.A. Vance and/or his senior management did not terminate this prosecution, did not discipline prosecutors who engaged in unconstitutional and unlawful practices, and did not properly train or supervise these prosecutors with regard to the constitutional and statutory limits on the exercise of their authority, and instead acquiesced and ratified the unconstitutional and unlawful practices in this case through callous, reckless and/or deliberate indifference to the effect of said practices upon the constitutional rights of persons in NYC and the Plaintiff.

135. Without limiting the foregoing, D.A. Vance has specifically omitted to take the following steps to terminate the unconstitutional and unlawful practices:

a. Has failed to properly supervise, train, instruct, and discipline prosecutors who participate with and advise police officers in using coercive interrogation techniques during the course of an investigation;

b. Has failed to properly supervise, train, instruct, and discipline prosecutors who conspire with police officers during the course of an investigation to prevent persons being interviewed to have access to counsel and, with respect to interrogation of vulnerable persons, to use coercive tactics including trickery, isolation, and the making of false promises regarding release, to elicit admissions from Plaintiff that they knew were false, but which were used to implicate him in the alleged crime despite the lack of any evidence to corroborate these false admissions;

c. The failure to properly supervise, train, instruct, and discipline prosecutors with regard to proper investigatory techniques and adequate evidence of crimes and to discipline those who unjustifiably charge and prosecute or continue to prosecute persons accused of crimes in the absence of probable cause.

136. Defendant NYC is directly liable and responsible for the acts of D.A. Vance because of the repeated and knowing failure to properly supervise, train and discipline prosecutors and because of the repeated and knowing failure to enforce the professional and ethical obligations of prosecutors, and to require their compliance with the Constitutions and laws of the State of New York and the United States.

137. The knowing and repeated failure of D.A. Vance to properly supervise, train and discipline the prosecutors in his Office actually caused the injuries to Plaintiff alleged herein.

138. Defendant NYC knew or should have known that the acts and failure to act of D.A. Vance alleged herein would deprive Plaintiff of his rights, in violation of the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution and Article 1, §§ 1, 6, 11 and 12 of the Constitution of the State of New York, including, without limitation, the Plaintiff's freedom from deprivation of liberty without due process of law.

D. Liability of Police Department Supervisors

139. All of the acts by the NYPD defendants involved with the investigation and prosecution of the Plaintiff were carried out with the actual or constructive knowledge, consent, acquiescence, ratification and/or cooperation of the supervisory authority of Police Commissioner William Bratton ("Commissioner Bratton").

140. Commissioner Bratton was well aware that police officers, including, without limitation, the individual detectives involved in Plaintiff's case, unconstitutionally and

unlawfully prosecute and continue to prosecute persons through fabricated and manipulated allegations without an adequate basis in fact and/or despite substantial exculpatory evidence known to police officers and withheld from accused persons.

141. The supervisory defendants had not properly trained police officers with regard to the constitutional and statutory limits on the exercise of their authority, and instead acquiesced and ratified these unconstitutional and unlawful practices through their callous, reckless and/or deliberate indifference to the effect of said practices upon the constitutional rights of persons in NYC.

142. Without limiting the foregoing, the supervisory NYPD defendants, acting jointly and severally, did the following:

a. They failed to properly supervise, train, instruct, and discipline police officers with regard to proper conduct and investigation at and in relation to a crime scene;

b. They failed to properly supervise, train, instruct, and discipline police officers with regard to the preparation of truthful accusatory instruments;

c. They failed to properly supervise, train and instruct police officers with regard to adequate evidence of crimes and has failed to discipline those who unjustifiably charge and prosecute or continue to prosecute persons accused of crimes in the absence of probable cause;

d. They failed to properly supervise, train, instruct and discipline police officers with regard to the exercise of their authority, including, without limitation, in regard to disclosure of exculpatory evidence;

e. They failed to properly supervise, train and instruct police officers with regard

to proper methods of conducting interviews of witnesses and/or accused persons, particularly vulnerable persons, they failed to discipline police officers who use improper methods to coerce and/or elicit false statements and/or confessions;

f. They failed to properly supervise, train and instruct police officers with regard to proper use of recording interrogations of accused persons, and they failed to discipline police officers who improperly failed to video record such interrogations;

g. They encouraged a code of silence wherein police officers regularly cover up police misconduct by refusing to report other officers misconduct or by telling false and/or incomplete stories, *inter alia*, in sworn testimony, official reports, in statements designed to cover for and/or falsely exonerate the accused police officers;

h. They encouraged and/or failed to discipline officers for fabricating false evidence to bring about the police officers' preconceived perceptions or determinations of guilt.

143. The supervisory NYPD defendants are rendered directly liable and responsible for the acts of the defendant detectives because the supervisory NYPD defendants repeatedly and knowingly failed to properly supervise, train and discipline the police officers under their command and because the supervisory NYPD defendants repeatedly and knowingly failed to enforce the rules and regulations of the Police Department, and to require compliance with the Constitutions of the State of New York and the United States.

144. The knowing and repeated failure of the supervisory NYPD defendants to properly supervise, train and discipline officers under their command actually caused the injuries to Plaintiff alleged herein.

145. The supervisory NYPD defendants knew or should have known that the acts alleged herein would deprive Plaintiff of his rights, in violation of the Fourth, Fifth, Sixth, and

Fourteenth Amendments to the United States Constitution and Article 1, §§ 1, 6, 11, and 12 of the Constitution of the State of New York, including, without limitation, the Plaintiff's freedom from deprivation of liberty without due process of law.

CLAIMS FOR RELIEF

First Claim for Relief

Violations of the Rights Secured by 42 U.S.C. § 1983 and the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution
(Against All City Individual Defendants)

146. Plaintiff realleges and incorporates by reference the foregoing paragraphs as if the same were fully set forth at length herein.

147. Defendants, under color of law, subjected Plaintiff to the foregoing conspiracies, unlawful acts, and omissions without due process of law and in violation of 42 U.S.C. § 1983, thereby depriving Plaintiff of rights, privileges and immunities secured by the Constitution and laws, including, but not limited to, those rights, privileges and immunities secured by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, including, without limitation, deprivation of the following constitutional rights, privileges and immunities:

- a. Constitutional right not to be deprived of liberty without due process of law;
- b. Constitutional right to the assistance of counsel;
- c. Constitutional right to equal protection of the laws;
- d. Constitutional right to due process because he was stigmatized and subjected to wrongfully being entered into the New York State Child Abuse and Maltreatment Register;
- e. Plaintiff was deprived of his constitutional and substantive and procedural due process rights;
- f. Plaintiff was deprived of his constitutional right to familial association while he

was detained on Rikers Island and while he subsequently was restricted from leaving Manhattan during the pendency of his criminal prosecution.

148. To the extent that any of these constitutional deprivations require a showing of specific intent and/or motive, the individual defendants acted intentionally, maliciously, with discriminatory motives and/or with a reckless disregard for the natural and probable consequences of their acts.

149. Defendants' conspiracies, unlawful acts, and omissions, conducted without lawful justification, caused specific and serious bodily, mental and emotional harm, economic injury, pain and suffering in violation of the Plaintiff's Constitutional rights as guaranteed under 42 U.S.C. § 1983, and the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

Second Claim for Relief

Violations of the Rights Secured by 42 U.S.C. §§ 1983 and 1985(3) and the Fourteenth
Amendment to the United States Constitution
(Against All City Individual Defendants)

150. Plaintiff realleges and incorporates by reference the foregoing paragraphs as if the same were fully set forth at length herein.

151. The individual City Defendants together, and under color of law, reached an understanding, engaged in a course of conduct, and otherwise conspired among and between themselves to deprive Plaintiff of his Constitutional rights, and did deprive Plaintiff of said rights, including, but not limited to, his right to be free from malicious prosecution and right to access to the Courts, as protected by the Fourth and Fourteenth Amendments to the United States Constitution and 42 U.S.C. § 1983.

152. Because said actions were done with the knowledge and purpose of depriving Plaintiff, a foreign national, of the equal protection of the laws and/or of equal privileges and

immunities under the law, and with animus toward the Plaintiff, they also deprived Plaintiff of his right to equal protection of the laws under the Fourteenth Amendment, and 42 U.S.C. §§ 1983 and 1985(3).

153. In furtherance of these conspiracies, the defendants and others, together with additional unsued co-conspirators, committed the overt acts set forth in the facts above, including, but not limited to, the malicious prosecution of Plaintiff; the manufacture by the methods articulated above of knowingly false inculpatory evidence against Plaintiff; the suppression of exonerating exculpatory evidence, including, but not limited to, disclosing that videos alleged to capture the charged conduct did not exist, that exonerating evidence was revealed in the interviews with Plaintiff's co-workers, the students in Plaintiff's class, and the students' parents; the making of known misstatements and the presentation of this knowingly false and incomplete evidence to prosecutors and judges; and the filing of false and incomplete statements and reports.

154. Said conspiracies and overt acts were continuing in nature, and caused Plaintiff's constitutional violations and injuries, pain, suffering, fear, mental anguish, incarceration, imprisonment, humiliation, defamation of character and reputation, and loss of freedom, companionship, and income, as set forth more fully above.

Third Claim for Relief

42 U.S.C. § 1983 *Monell* Claim Against the City of New York for the Actions and Omissions of
the Police Officer Defendants and the Police Department
(Against NYC)

155. Plaintiff realleges and incorporates by reference the foregoing paragraphs as if the same were fully set forth at length herein.

156. NYC, through its Police Department and Police Commissioners, had in effect, both before and at the time of the events alleged in this complaint, several interrelated *de facto* policies, practices and customs, *inter alia*,

a. a policy, practice and custom of suppressing, destroying or otherwise secreting from criminal defendants exculpatory or exonerating evidence; and

b. a policy, practice and custom of failing to properly train or supervise officers in the proper techniques of investigating serious crimes, particularly where vulnerable suspects were involved; and

c. a policy, practice and custom of using coercion, isolation, intimidation, manipulation, deceit, false promises, sleep deprivation, and other unlawful and improper methods to secure false confessions, particularly in matters in which vulnerable suspects were involved; and

d. a policy, practice and custom of failing to properly discipline officers who violate the United States Constitution or law, or otherwise transgress the rights of criminal suspects during their investigations; and

e. a policy, practice and custom of immediate public vilification of persons accused of “high-profile” crimes with accompanying refusal to consider evidence inconsistent with that portrayal.

157. The interrelated policies, practices and customs, separately and/or together, were implemented with deliberate indifference, and were a direct and proximate cause of the Plaintiff’s Constitutional violations and injuries, as set forth above.

158. These interrelated policies, practices and customs, separately and/or together, were the direct and proximate cause of injury and damage to Plaintiff and violated his rights as

guaranteed by the United States Constitution, as well as his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

159. The existence of these interrelated policies, practices and customs can be inferred from numerous incidents reflecting a pattern of police and prosecutor misconduct like that alleged herein.

160. The existence of these interrelated policies, practices and customs can be inferred from the fact that the incidents of police and prosecutor misconduct alleged herein were authorized by individuals with policymaking authority in the Police Department.

161. Defendant Bratton, as Police Commissioner for NYC, is, by operation of state law and as a matter of fact, the final decision-maker for New York with regard to the investigative, arrest, custodial, and administrative acts, omissions, and decisions which he made or participated in, as alleged above.

162. Despite the 2012 public announcement that the NYPD would require that interrogations of suspects in all sex crimes and murder cases be video recorded, Defendant Bratton has failed to take any efforts to enforce this alleged policy and has not disciplined officers who fail to comply with its requirements. By failing to enforce the policy, Defendant Bratton has ratified and condoned the wrongdoing of the police officers who have coerced statements from vulnerable individuals accused of sex crimes and murder charges and failed to video record the interrogation.

163. As a member of the Police Department with policymaking authority, Bratton's ratification of said police misconduct is sufficient to infer a policy or custom of ratifying misconduct in the Police Department.

164. These acts by defendant Bratton directly and proximately caused the constitutional violations and injury to the Plaintiff, and are directly chargeable to the defendant NYC because of Commissioner Bratton's status as final decision-maker for NYC with respect to matters involving the New York City Police Department.

Fourth Claim for Relief

42 U.S.C. § 1983 *Monell* Claim Against the City of New York for the Actions and Omissions of the Defendant Prosecutors and the District Attorney's Office
(Against NYC)

165. Plaintiff realleges and incorporates by reference the foregoing paragraphs as if the same were fully set forth at length herein.

166. NYC, through the New York County District Attorney's Office and its District Attorneys, had in effect, both before and at the time of the events allege in this complaint, several interrelated *de facto* policies, practices and customs, including, *inter alia*,

a. The failure to properly supervise, train, instruct, and discipline prosecutors who participate with and advise police officers in using coercive interrogation techniques during the course of an investigation; and

b. The failure to properly supervise, train, instruct, and discipline prosecutors who conspire with police officers during the course of an investigation to prevent persons being interviewed from having access to counsel; and

c. The failure to properly supervise, train, instruct, and discipline prosecutors with regard to proper investigatory techniques and adequate evidence of crimes and to discipline those who unjustifiably charge and prosecute or continue to prosecute persons accused of crimes in the absence of probable cause.

167. These interrelated policies, practices and customs, separately and/or together, were implemented with deliberate indifference, and were a direct and proximate cause of the Plaintiff's Constitutional violations and injuries, as set forth above.

168. These interrelated policies, practices and customs, separately and/or together, were the direct and proximate cause of injury and damage to Plaintiff and violated his rights as guaranteed by the United States Constitution, as well as his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

169. The existence of these interrelated policies, practices and customs can be inferred from numerous incidents reflecting a pattern of police and prosecutor misconduct like that alleged herein.

170. The existence of these interrelated policies, practices and customs can be inferred from the fact that the incidents of police and prosecutor misconduct alleged herein were authorized and not terminated by individuals from the New York County District Attorney's Office with municipal policymaking authority.

171. All of the acts by the defendant prosecutors described in the preceding paragraphs were carried out with the actual or constructive knowledge, consent, acquiescence, ratification and/or cooperation of the highest-ranking members of the New York County District Attorney's Office, including, but not limited to D.A. Vance and/or his senior management.

172. D.A. Vance, as New York County District Attorney, is, by operation of state law and as a matter of fact, the final decision-maker for New York with regard to the investigative, arrest, custodial, prosecutorial and administrative acts, omissions, and decisions which he made or participated in, as alleged above.

173. As a member of the District Attorney's Office with municipal policymaking authority, D.A. Vance's ratification of said prosecutor misconduct is sufficient to infer a policy or custom of ratifying prosecutor misconduct by the City.

174. These acts and omissions by Vance directly and proximately caused the constitutional violations and injury to the Plaintiff, and are directly chargeable to the defendant NYC because of D.A. Vance's status as final decision-maker for the City with respect to matters involving the New York County District Attorney's office.

Fifth Claim for Relief
Violation of Rights Under State Law
(Against NYC Individual Defendants)

175. Plaintiff realleges and incorporates by reference the foregoing paragraphs as if the same were fully set forth at length herein.

176. By the actions described above, each and all of the NYC individual defendants, jointly and severally, have committed the following wrongful acts against the Plaintiff, which are tortious under the laws of the State of New York:

- a. malicious prosecution
- b. intentional infliction of emotional distress upon the Plaintiff, in that the defendants intended to and did cause the Plaintiff severe emotional distress through a continuous course of misconduct, and the defendants' acts were outrageous in the extreme and utterly unacceptable in a civilized society;
- c. violation of rights otherwise guaranteed for the Plaintiff under the laws and Constitution of the State of New York.

177. The foregoing acts and conduct of the defendants were the direct and proximate cause of injury and damage to the Plaintiff and violated his statutory and common law rights as guaranteed to him by the laws and Constitution of the State of New York.

Sixth Claim for Relief
Respondeat Superior
(Against NYC)

178. Plaintiff realleges and incorporates by reference the foregoing paragraphs as if the same were fully set forth at length herein.

179. The individual NYC defendants, and other individuals who joined with them in their wrongful conduct, were, at all times relevant to this Count, employees and agents of either the City of New York or the New York County District Attorney's Office. Each of those defendants and persons was acting within the scope of his or her employment, and their acts and omissions as alleged above, are therefore directly chargeable to the City of New York under the state doctrine of *respondeat superior*.

Seventh Claim for Relief
Violation of Rights Under State Law
(Against Defendant Maria Angeliki Kefalas)

180. Plaintiff realleges and incorporates by reference the foregoing paragraphs as if the same were fully set forth at length herein.

181. Defendant engaged in extreme and outrageous conduct beyond all possible bounds of decency when she filed false reports alleging Plaintiff committed criminal conduct.

182. Defendant's extreme and outrageous conduct was intended to inflict severe distress upon Plaintiff when she filed such false reports.

183. Defendant's outrageous conduct did inflict severe distress upon Plaintiff, which caused Plaintiff to suffer anxiety and mental anguish.

184. All of the aforementioned acts of the Defendant constituted intentional infliction of emotional distress under the law of the State of New York and the Defendant is liable for said damage. Pursuant to 28 U.S.C. § 1367, this Court has pendant jurisdiction to hear and adjudicate such claims.

Eighth Claim for Relief
Injurious Falsehood
(Against Defendant Maria Angeliki Kefalas)

185. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

186. Defendant Kefalas uttered and published untrue statements regarding plaintiff to police officers, assistant district attorneys, IPS employees and others.

187. Defendant Kefalas' statements were made with malice comprising ill will, scienter and/or deliberate falsification regarding Plaintiff in his professional capacity.

188. Defendant Kefalas' statements caused others to refrain from dealing with Plaintiff inasmuch as Plaintiff was not able to obtain work as a result of this incident during the entire pendency of the criminal prosecution that resulted from this incident.

189. All of the aforementioned acts of defendant Kefalas constituted injurious falsehood under the law of the State of New York and the defendant is liable for said damage. Pursuant to 28 U.S.C. 1367, this Court has pendant jurisdiction to hear and adjudicate such claims.

Ninth Claim for Relief
Libel
(Against Defendant Maria Angeliki Kefalas)

190. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

191. Defendant Kefalas caused the publication of statements about Plaintiff that were false.

192. The false statements published by defendant Kefalas were defamatory on their face, inasmuch as they accused Plaintiff of crimes and other bad acts that he did not commit.

193. All of the aforementioned acts of the Defendant Kefalas constituted libel *per se* under the law of the State of New York and the defendant is liable for said damage. Pursuant to 28 U.S.C. 1367, this Court has pendant jurisdiction to hear and adjudicate such claims.

Tenth Claim for Relief
Slander
(Against Defendant Maria Angeliki Kefalas)

194. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

195. Defendant Kefalas caused the publication of a defamatory matter to IPS, the NYPD and DANY about plaintiff, which was then broadcast to the public, and the statements were caused to be heard by the public.

196. Defendant Kefalas caused the publication of a defamatory matter about Plaintiff to IPS, the defendant police officers and DANY.

197. All of the aforementioned acts of defendant Kefalas constituted slander under the law of the State of New York and the Defendant is liable for said damage. Pursuant to 28 U.S.C. 1367, this Court has pendant jurisdiction to hear and adjudicate such claims.

Eleventh Claim for Relief
Negligent Infliction of Emotional Distress
(Against Defendant Maria Angeliki Kefalas)

198. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if fully set forth herein.

199. Plaintiff engaged in extreme and outrageous conduct beyond all possible bounds of decency by and through *inter alia* her false complaints regarding Plaintiff to IPS, the NYPD and DANY, which, as described above, she knew or should have known were untrue.

200. Defendant Kefalas' extreme and outrageous conduct was a departure from that

which reasonably prudent persons would have done under the circumstances.

201. As a proximate cause of defendant Kefalas' extreme and outrageous conduct, Plaintiff was caused to suffer anxiety and mental anguish and was caused to fear for his own safety.

202. All of the aforementioned acts of the defendant constituted negligent infliction of emotional distress under the laws of the State of New York and the defendant Kefalas is liable for said damage. Pursuant to 28 U.S.C. 1367, this Court has pendant jurisdiction to hear and adjudicate such claims.

Twelfth Claim for Relief
Negligence
(Against Defendant Maria Angeliki Kefalas)

203. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

204. Defendant Kefalas owed a duty to Plaintiff in interacting and/or not interacting with him and/or treating him in a manner using that degree of ordinary care that reasonably prudent people would have used under the same circumstances.

205. Defendant Kefalas breached that duty of ordinary care to Plaintiff by *inter alia* her false complaints regarding plaintiff to IPS, the NYPD and to DANY, which, as described above, she knew or should have known were untrue.

206. As a direct and proximate result of the carelessness, recklessness and/or negligence of defendant Kefalas, Plaintiff sustained significant damages.

207. All of the aforementioned acts of defendant Kefalas constituted negligence under laws of the State of New York and defendant is liable for said damage. Pursuant to 28 U.S.C. §1367, this Court has pendant jurisdiction to hear and adjudicate such claims.

Thirteenth Claim for Relief
Prima Facie Tort
(Against Defendant Maria Angeliki Kefalas)

208. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

209. Defendant Kefalas, by and through the filing of her false complaint to IPS, and to the NYPD and publication of statements to IPS, the NYPD and DANY, which contained multiple untrue statements, including, but not limited to the allegation that Plaintiff sexually abused children; and also subjecting Plaintiff to unnecessary prosecution and without justification intended to inflict harm upon Plaintiff.

210. Said actions, which are otherwise unlawful, were/are solely motivated by malice or disinterested malevolence, were/are without excuse or justification and have caused special damages to the Plaintiff.

211. All of the aforementioned acts of defendant Kefalas constituted negligence under laws of the State of New York and defendant is liable for said damage. Pursuant to 28 U.S.C. §1367, this Court has pendant jurisdiction to hear and adjudicate such claims.

WHEREFORE, Plaintiff prays that the Court will:

A. Issue a judgment declaring that the NYPD's policy, practice and/or custom of failing to video record interrogations of suspects of felonies is unconstitutional;

B. Issue an order for injunctive relief: Requiring the NYPD to video record

interrogations of all suspects of felony offenses;

C. Award Plaintiff compensatory damages in the amount of \$7,000,000 (seven million dollars);

D. Award Plaintiff damages against Defendant Bratton, the individual Officer/Detective Defendants, and the individual Assistant District Attorney Defendants, to the extent that their liability is based upon reprehensible actions and/or inaction undertaken in their individual capacities, in an amount which is fair, just and reasonably designed to punish and deter said reprehensible conduct in an amount to be determined at trial;

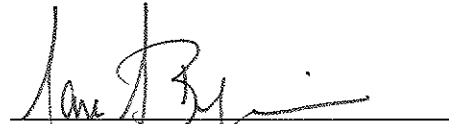
E. Award Plaintiff reasonable attorney's fees pursuant to 42 U.S.C. § 1988;

F. Award Plaintiff costs of suit pursuant to 42 U.S.C. §§ 1920 and 1988; and

G. Award such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief as may be required in the interest of justice, together with attorney's fees, interest, costs and disbursements of this actions.

Dated: April 6, 2015
New York, New York

Respectfully Submitted,



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